CHAPTER 53 Attorney General of India

The Constitution (Article 76) has provided for the office of the Attorney General for India[1]. He/she is the highest law officer in the country.

Appointment And Term

The Attorney General (AG) is appointed by the President. He/she must be a person, who is qualified to be appointed as a judge of the Supreme Court. In other words, he/she must be a citizen of India and must have been a judge of some high court for five years or an advocate of some high court for ten years or an eminent jurist, in the opinion of the President.

The term of office of the AG is not fixed by the Constitution. Further, the Constitution does not contain the procedure and grounds for his/her removal. He/she holds office during the pleasure of the President. This means that he/she may be removed by the President at any time. He/she may also quit office by submitting resignation to the President. Conventionally, he/she resigns when the government (council of ministers) resigns or is replaced, as he/she is appointed on its advice.

The remuneration of the AG is not fixed by the Constitution. He/she receives such remuneration as the President may determine.

Duties And Functions

As the chief law officer of the Government of India, the duties of the AG include the following:

1. To give advice to the Government ofIndia upon such legal matters, which are referred to him/her by the President.
2. To perform such other duties of a legal character that are assigned to him/her by the President.
3. To discharge the functions conferred on him/her by the Constitution or any other law.



The President has assigned the following duties to the AG[2]:

1. To appear on behalf of the Government of India in all cases in the Supreme Court in which the Government of India is concerned.
2. To represent the Government of India in any reference made by the President to the Supreme Court under Article 143 of the Constitution.